

## MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of 1 March 2025 between Aurora Holdings Limited, a company incorporated in England and Wales ("Customer"), and Boreal Software GmbH, a company incorporated in Germany ("Supplier").

### ARTICLE I DEFINITIONS AND INTERPRETATION

#### 1. Definitions

In this Agreement the following terms have the following meanings.

(a) "Affiliate" means any entity that controls, is controlled by, or is under common control with a party.

(b) "Confidential Information" means all information disclosed by one party to the other that is marked confidential or would reasonably be understood to be confidential.

(c) "Services" means the services described in a Statement of Work.

#### 2. Interpretation

Clause headings are for convenience only and do not affect interpretation. Words in the singular include the plural and vice versa.

### ARTICLE II SERVICES

#### 3. Provision of Services

3.1 Supplier shall provide the Services in accordance with each Statement of Work and with reasonable skill and care.

3.2 Supplier shall comply with all applicable laws and with Customer's reasonable security policies notified to Supplier in writing.

3.3 Time shall not be of the essence in respect of any delivery date unless expressly stated in a Statement of Work.

#### 4. Change Control

4.1 Either party may request a change to the Services by written notice.

4.2 No change shall be effective until agreed in writing by both parties.

The parties acknowledge that this provision has been negotiated at arm's length and reflects the commercial allocation of risk agreed between them. Nothing in this clause shall be

construed to limit any liability which cannot be limited by applicable law. Each party shall bear its own costs in connection with the matters described herein.

## ARTICLE III COMMERCIAL TERMS

### 5. Fees and Payment

5.1 Customer shall pay the Fees set out in the applicable Statement of Work within thirty (30) days of receipt of a valid invoice.

5.2 All sums are exclusive of VAT, which shall be payable in addition at the applicable rate.

5.3 Supplier may charge interest on late payment at four per cent (4%) per annum above the Bank of England base rate.

### 6. Term and Termination

6.1 This Agreement commences on the Effective Date and continues for an initial term of three (3) years (the "Initial Term").

6.2 Following the Initial Term this Agreement shall renew automatically for successive periods of twelve (12) months unless either party gives not less than ninety (90) days' written notice of non-renewal.

6.3 Either party may terminate this Agreement for convenience on six (6) months' written notice.

6.4 Either party may terminate this Agreement immediately on written notice if the other party commits a material breach which is irremediable or which is not remedied within thirty (30) days of notice.

### 7. Confidentiality

7.1 Each party shall keep the other party's Confidential Information confidential and shall not disclose it except as permitted by this clause.

7.2 The obligations in this clause 7 survive termination for a period of five (5) years.

The parties acknowledge that this provision has been negotiated at arm's length and reflects the commercial allocation of risk agreed between them. Nothing in this clause shall be construed to limit any liability which cannot be limited by applicable law. Each party shall bear its own costs in connection with the matters described herein.

## ARTICLE IV RISK

### 8. Indemnities

8.1 Customer shall indemnify Supplier against all losses arising from Customer's breach of clause 3.2.

8.2 Supplier shall indemnify Customer against all losses arising from any claim that the Services infringe a third party's intellectual property rights.

8.3 The indemnified party shall notify the indemnifying party promptly of any claim and shall not settle any claim without the indemnifying party's prior written consent.

## 9. Limitation of Liability

9.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability which cannot be limited by law.

9.2 Subject to clause 9.1, each party's total aggregate liability under or in connection with this Agreement in any Contract Year shall not exceed an amount equal to one hundred and twenty-five per cent (125%) of the Fees paid or payable in that Contract Year.

9.3 Subject to clause 9.1, neither party shall be liable for any indirect or consequential loss, loss of profit, or loss of business.

The parties acknowledge that this provision has been negotiated at arm's length and reflects the commercial allocation of risk agreed between them. Nothing in this clause shall be construed to limit any liability which cannot be limited by applicable law. Each party shall bear its own costs in connection with the matters described herein.

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## ARTICLE V GENERAL

### 10. Assignment

Neither party may assign this Agreement without the prior written consent of the other, such consent not to be unreasonably withheld, save that Customer may assign to an Affiliate on notice.

### 11. Governing Law and Jurisdiction

This Agreement and any dispute arising out of it shall be governed by the laws of England and Wales, and the courts of England and Wales shall have exclusive jurisdiction.

IN WITNESS WHEREOF the parties have executed this Agreement.